

MOTIONS TO BIFURCATE AND FOR SUMMARY JUDGMENT

This is a personal injury and wrongful death action stemming from a traffic collision on 10/04/19 between two vehicles crossing paths in the 5400 block of State Route 12. Before the Court is a motion to bifurcate and a motion for summary judgment – both presented by defendants Mitchell McGee (driver) and his employer R&M Water Well Drilling and Pumps. (While other parties previously sought bifurcation, those other requests have since been withdrawn, likely based on plaintiffs' representation that the other defendants have reached a settlement.)

Summary Judgment

The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. A defendant may prevail on the motion in one of three ways: (1) by affirmatively negating at least one of plaintiff's essential elements; (2) by showing that plaintiff does not have, and cannot get, evidence to establish an essential element after fully exploring plaintiff's case through discovery; or (3) by presenting evidence as to each element of an affirmative defense upon which defendant bears the burden of proof at trial. Once the defendant's initial burden is met, the burden shifts to the plaintiff to show by substantial evidence that a triable issue of material fact exists as to the claim or defense. Contrary to popular folklore, summary judgment is no longer a disfavored remedy; instead, it is "now seen as a particularly suitable means to test the sufficiency of the plaintiff's case" to see if trial is really warranted. (*Perry v. Bakewell Hawthorne, LLC* (2017) 2 Cal.5th 536, 542; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851-854.)

Since the operative pleading forms the outer measure of materiality on a motion for summary judgment, a review of that pleading must occur first. (See *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444; *Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 289-290.) The operative pleading here is the Second Amended Complaint, filed 07/29/20. There are four causes of action stated therein: wrongful death; survival action; negligence; NIED (bystander). Although the essential elements for the causes of action differ slightly, defendants' motion is based entirely on what they describe as a lack of evidence supporting breach of any duty. (See MPA 4:20-21.) Defendants' erroneous commingling of distinct elements (breach and duty) notwithstanding, the contention is easily disposed of without shifting the burden to plaintiffs.

In terms of legal duty, Civil Code §1714(a) provides that "everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person." This is the codification of the legal duty imposed upon everyone, including defendant, to operate their motor vehicle in a safe manner. (See *Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 771.) Defendants do not dispute that Mitchell had a duty to use ordinary care, and that he

may be liable for injuries caused by any failure to exercise reasonable care under the circumstances. Defendants also do not dispute that Mitchell was in the course and scope of his employment with R&M, subjecting R&M to vicarious liability (in addition to registered owner liability).

Regarding breach, it is important first to note that “a determination that the defendant did not breach the duty of ordinary care is for the jury to make.” (*Cabral* at 772; in accord, *Kim v. County of Monterey* (2019) 43 Cal.App.5th 312, 327.) While the issue could in theory be decided on motion when no reasonable mind could dispute the lack of wrongdoing, defendants’ contention that Mitchell “did nothing wrong” is an opinion – not an indisputable fact. As plaintiffs point out, there will be evidence that Mitchell may have been traveling at an unsafe speed for the road conditions (Veh. Code §§ 21809, 22350, 22362), was distracted by his cellular telephone (Veh Code §23134), or simply failed to keep a proper lookout when approaching a driveway (Veh Code §§ 21800, 22352(a)(2)). The existence of “video footage” may certainly aid defendants in ultimately prevailing at trial, but it does not “negate” breach of the duty to drive carefully – particularly since plaintiffs can prevail by establishing only 1% fault to defendants, whereas defendants must show 100% no-fault. (See *Phipps v. Copeland Corporation LLC* (2021) 64 Cal.App.5th 319, 332-333; *Soto v. BorgWarner Morse TEC Inc.* (2015) 239 Cal.App.4th 165, 202.) Defendants are not entitled to summary judgment.

Bifurcating Liability From Damages

Trial courts have plenary power to provide for the orderly conduct of proceedings (CCP §128(3)), including the power to control the order of issues presented or separate trials when doing so will be conducive to economy and efficiency. (See CCP §§ 598, 1048(a).) One option is bifurcation, which is an order from the Court establishing separate trials of issues within the same case. Bifurcation services two principal purposes: first, to prevent a waste of time and money resulting from a trial of unnecessary issues; and second, to minimize prejudice to the defendant by inviting a finding on liability which supports an emotional reaction to the damages. However, if such an order results in duplication of effort, or the possibility of conflicting findings, bifurcation is not warranted. The decision to bifurcate liability from damages is committed to the sound discretion of the trial court. (See *Bunch v. Hoffinger Industries, Inc.* (2004) 123 Cal.App.4th 1278, 1283; *Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc.* (2000) 78 Cal.App.4th 847, 911; *Notrica v. State Compensation Ins. Fund* (1999) 70 Cal.App.4th 911, 939; *Prudential Property & Casualty Ins. Co. v. Superior Court* (1995) 36 Cal.App.4th 275, 279.)

Defendants McGee and R&M proffer that bifurcating liability from damages here would promote economy and efficiency because it would be virtually impossible for jurors to “dispassionately evaluate [liability] in light of” the obvious sympathy for a child who essentially witnessed his mother take her last breath. Defendants further posit that there would be no duplication since none of the twenty (20) “liability” witnesses will testify in the damage phase, or vice versa. Plaintiffs counter that at least four of the “liability” witnesses would be called by plaintiff in the “damage” phase to establish the minor child’s emotional distress. Plaintiffs further advise that the “damage” phase could take as little as two days, making bifurcation unduly time-consuming.

Given the child’s age (see Evid. Code §701), it is beyond peradventure that percipient witnesses will be critical to plaintiff’s bystander claim. This cuts against bifurcation. However,

defendants make a strong argument – which plaintiff all but ignores – regarding juror passions. Having carefully considered the arguments, this Court finds that the problem here is not liability vs. damages (the traditional bifurcation), but rather “liability for the accident” vs. “liability for derivative claims.” The survival action depends both on negligent driving and expert proof that Molly experienced pain and suffering from the accident. The bystander claim depends both on negligent driving and evidence of Leo’s contemporaneous experience of Molly’s plight. The concerns raised by both parties are alleviated by the following order under authority of CCP §598:

- Phase 1 – liability *for the accident* (Molly v. Mitchell – COA 1 and 3);
- Phase 2 – liability for survivor and bystander (Molly/Leo v. Mitchell – COA 2 and 4)
- Phase 3 – damages from Phase 1 and 2.

The parties are ordered to meet, confer, and submit for this Court a *joint* trial plan to include exhibits and witnesses reasonably anticipated for each Phase (excluding of course rebuttal evidence). This joint trial plan is to be filed by the close of business on May 27, 2022, and may be addressed at the Trial Confirmation Conference on June 2, 2022.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants shall prepare a formal Order for their bifurcation motion pursuant to CRC 3.1312 in conformity with this ruling. Plaintiffs shall prepare a formal Order for the summary judgment motion pursuant to CRC 3.1312 in conformity with this ruling.